ROOTS & WISDOM STUDIO

Participant Waiver, Assumption of Risk & Limited Release

Roots Legacy Ventures LLC dba Roots & Wisdom Studio
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PLEASE READ CAREFULLY. This agreement includes an assumption of risk and a limited release of legal claims, including certain claims based on ordinary negligence. Ask questions before signing.

1. Participants and covered activities

This agreement applies to the participant named below and to all practices, classes and related activities offered and operated by Roots Legacy Ventures LLC dba Roots & Wisdom Studio (the Studio), directly or jointly with Uriel E. Arauz dba Sitio Alegre Capoeira, now or in the future, at the Studio. Covered activities include, without limitation, movement, dance, fitness, mobility, yoga, martial arts, music and cultural practice, including Capoeira and Sitio Alegre Capoeira classes, the roda, music and instruments; Salsa; Ground-based Mobility Flow; Yoga when offered; and studio-operated private lessons, workshops, supervised practice, social dance events (including Salsa Socials when offered) and community classes (including the All-Kids Community Class). The named practices are examples, not a complete list. It applies to current students, new students, members, drop-in participants and free-trial participants. It does not replace a membership or payment agreement. Independently operated Samba uses its own agreement and is not covered by this agreement. Other independently operated guest programs, off-site activities, rentals and childcare are not covered unless separately agreed in writing. The Studio will explain activity-specific risks and require an updated or supplemental agreement before participation in a new practice with materially different risks.

2. Voluntary participation and personal boundaries

Participation is voluntary. I may decline a movement, partner interaction, physical contact or hands-on adjustment, and may pause or stop at any time. I will tell the instructor if I need a modification or do not want physical contact. I understand that instructors can provide options but cannot guarantee that an activity is suitable for my individual circumstances.

3. Activities and inherent risks

Movement practice involves exertion, balance, changes of direction, floor work and proximity to other people. Risks include slips, trips, falls, collisions, accidental contact, fatigue, dizziness, strains, sprains, bruises and other injuries, which may include fractures, concussion, serious injury, permanent disability or death. Capoeira may include kicks, sweeps, evasions, cartwheels, handstands, inversions, acrobatics and close interaction in the roda. Salsa may include turns, quick footwork, partnered movement and rotating partners. Mobility Flow and Yoga may include loaded joint positions, stretching, low transitions and controlled inversions. Instruments, equipment, floors and footwear or bare feet can affect grip, balance and safety. These examples are not exhaustive. Other current or future practices may involve different movements, exertion, partner contact, equipment or instruments. Participants should ask about the specific activity and its risks before joining; these examples do not describe every future practice.

4. Assumption of inherent risks

I understand that inherent risks can cause injury or loss even when reasonable care is used. I knowingly and voluntarily choose to participate and assume the inherent risks of the covered activities. This assumption does not waive any claim that California law does not allow to be waived.

5. Health, instructions and participation responsibilities

I am responsible for considering whether I can safely participate and for seeking appropriate medical advice if I have a health concern. The Studio and its instructors do not provide medical diagnosis or treatment. I will not participate when I believe it is unsafe. I will disclose relevant participation limitations privately to the instructor, follow reasonable safety instructions, stay within my skill level, use suitable clothing and footwear, respect the space and other participants, and stop and notify the instructor if I feel unwell, dizzy or injured. I do not need to disclose a detailed medical history on this form. The Studio or instructor may pause or end participation when behavior, a health concern or failure to follow safety instructions creates a safety risk. This does not change the participant's separate payment or refund terms.

6. LIMITED RELEASE OF ORDINARY-NEGLIGENCE CLAIMS

To the fullest extent permitted by California law, I release Roots Legacy Ventures LLC dba Roots & Wisdom Studio, together with Claudia Aguilar, Uriel E. Arauz individually and dba Sitio Alegre Capoeira, its owners, and its instructors, employees, contractors and agents acting in connection with the covered activities (the Released Parties), from claims for personal injury, illness, death or property loss arising from the participant's participation in those activities, but only to the extent a claim is based on a Released Party's ordinary negligence. THIS RELEASE DOES NOT APPLY TO GROSS NEGLIGENCE, FRAUD, WILLFUL INJURY OR MISCONDUCT, VIOLATION OF LAW, OR ANY OTHER CLAIM OR LIABILITY THAT CANNOT LAWFULLY BE WAIVED. Its effect depends on applicable law and the facts; enforceability is not guaranteed.

7. Parent or legal guardian consent for a minor

If the participant is under 18, the parent or legal guardian must sign. I confirm that I am the named child's parent or legal guardian and have authority to give participation consent. I have read this agreement, understand the activities and risks, and consent to the child's participation. I will explain appropriate safety expectations and share relevant limitations with the instructor. To the extent permitted by California law, I agree to the assumption of risk and limited release above on the child's behalf and release my own claims arising from the child's covered participation on the same limited basis. I understand that this does not waive claims that cannot lawfully be waived. An adult sibling, friend or other accompanying person may not sign unless they are the child's legal guardian. Each child needs a separate record. When the child turns 18, they must sign an adult agreement before further participation.

8. Emergency assistance

If an emergency occurs, I authorize the Studio to contact the listed emergency contact and call emergency services when reasonably necessary. For a minor, I authorize staff to seek emergency medical evaluation when the guardian cannot promptly be reached, subject to applicable law. This does not make the Studio a medical provider, require staff to perform treatment beyond their training, or guarantee a particular response. Charges for outside medical care remain subject to the provider's usual terms and applicable law.

9. Duration, updates and existing agreements

This agreement applies prospectively from signing to the participant's future covered participation unless replaced by a new signed agreement or withdrawn in writing to hello@rootsandwisdomstudio.com. Withdrawal applies to future participation and does not undo the agreement for earlier covered participation. The Studio will require a replacement waiver after material changes and an updated or supplemental agreement before participation in a new practice with materially different risks. This agreement does not release claims for incidents before it was signed, change existing membership benefits, or create cancellation, refund or payment terms. Those terms remain in the participant's separate applicable agreement. California law governs this agreement. If a provision is unenforceable, the remaining provisions apply to the extent permitted by law.

10. Optional photo and video permission

Photo and video permission is separate from participation and is not required to attend. If I choose Yes, I permit the Studio to use photos or videos showing the participant, and their voice if captured, on the Studio's website, social media, printed promotional materials and studio educational materials without payment or advance approval of each use. This permission does not authorize sale of the participant's likeness to unrelated third parties or publication of medical or emergency-contact information. If I choose No or leave the choice blank, I do not grant this permission. I may change my preference by emailing hello@rootsandwisdomstudio.com. Withdrawal stops new uses after a reasonable processing period; the Studio cannot guarantee removal of copies already distributed or shared by others. For a minor, the parent or legal guardian makes this choice.

11. Acknowledgment and electronic signing

I have read this entire agreement, understand the limited release and the rights it affects, and have had an opportunity to ask questions. I sign voluntarily. For electronic signing, I agree to use electronic records and signatures for this agreement. By typing my full legal name and selecting the agreement checkbox, I intend to sign this agreement electronically. If signing for a minor, I sign as that child's parent or legal guardian. I can print or save a copy before and after submitting. A paper signing option is available through the Studio.

PARTICIPANT AND SIGNING DETAILS

Signing role	Adult participant [ ] Parent / legal guardian [ ]
Participant full legal name	_____
Participant date of birth	_____
Email / phone	_____
Parent / guardian name	_____
Relationship to child	_____
Emergency contact name	_____
Emergency contact phone	_____
Optional photo / video consent	Yes [ ] No [ ] Blank means no permission
Signature of adult or guardian	_____
Date signed	_____

For a minor: By signing, I confirm that I am the named child's parent or legal guardian with authority to give consent. One record is required for each child.